

NOTICE INVOKING MEDIATION & STATEMENT OF CLAIMS

Non-payment of certified running account bills under Work Order No. GF/WO/118/2024

CLAIMANT (PARTY A)	M/s Shivalik Constructions Pvt. Ltd., 2nd Floor, Meera Complex, Pune — 411001
RESPONDENT (PARTY B)	M/s Greenfield Developers Pvt. Ltd., Greenfield House, Wakad, Pune — 411057
REFERENCE	Work Order No. GF/WO/118/2024 dated 15-Apr-2024
AMOUNT CLAIMED	■1,86,50,000 (principal) + interest @ 18% p.a. + costs
MEDIATION FORUM	Pune District Legal Services Mediation Centre / Private Mediator

1. THE CONTRACT & SCOPE OF WORK

By Work Order dated 15-Apr-2024, Greenfield Developers appointed Shivalik Constructions as the main contractor for civil, finishing and MEP works of 'Greenfield One' — a G+12 residential tower at Wakad, Pune, for a total contract value of ■38,50,00,000 (Thirty-Eight Crore Fifty Lakh Rupees). The work comprised: excavation and RCC framework, structural RCC works, brickwork and plastering, flooring and finishing, plumbing and sanitary works, electrical and MEP works, and external development. The time for completion was fixed at 24 months from the date of site handover with a liquidated-damages clause of 0.1% of contract value per week of delay, capped at 5%.

2. PROGRESS OF WORK & CERTIFIED BILLS

The claimant commenced work on 02-May-2024 and has completed, as per the Joint Measurement Book and the Architect's certificates, works valued at ■26,40,00,000 up to 31-Dec-2025. The bills raised and certified by the architect/engineer are: (i) RA Bill No. 7 dated 15-Jun-2025 for ■3,85,00,000 — certified ■3,85,00,000; (ii) RA Bill No. 8 dated 15-Sep-2025 for ■4,10,00,000 — certified ■4,10,00,000; (iii) RA Bill No. 9 dated 15-Dec-2025 for ■3,95,00,000 — certified ■3,75,00,000. Against the aggregate certified amount of ■11,70,00,000, the respondent has paid only ■9,83,50,000, leaving a balance of ■1,86,50,000 towards certified works.

3. BREACH BY RESPONDENT & DEMAND

Despite repeated written reminders (letters dated 20-Aug-2025, 05-Nov-2025 and 20-Jan-2026) and the mandatory pre-arbitral/mediation notice dated 02-Feb-2026, the respondent has failed and neglected to pay the certified amounts. Clause 12.5 of the General Conditions of Contract provides that certified running account bills shall be paid within 30 days and that delayed payments attract simple interest at 18% p.a. The respondent has thus defaulted in payment of ■1,86,50,000, and the claimant is entitled to interest amounting to ■12,40,000 as on date, besides further interest and costs.

4. CLAIMS RAISED (PARTY A)

Sr.	Head of Claim	Amount (■)
1	Certified running account bills — balance unpaid	1,86,50,000
2	Interest @ 18% p.a. up to 31-Jan-2026	12,40,000
3	Costs of notice and mediation	1,50,000
4	Total	2,00,40,000

5. INVITATION TO MEDIATE

The claimant, through this notice, invites the respondent to participate in a structured mediation under Section 5 of the Mediation Act, 2023, before a mutually agreed mediator or the Pune District Legal Services Authority, to resolve the above dispute amicably and expeditiously. The claimant is willing to consider a reasonable settlement, including a payment schedule, provided the certified principal amount is cleared. If the respondent fails to respond within 15 days of service of this notice, the claimant shall be constrained to invoke the arbitration clause (Clause 20.1 of the G.C.C.) and/or approach the competent civil/commercial court, without further notice and at the respondent's risk as to costs.

For M/s Shivalik Constructions Pvt. Ltd.

R. R. Kolhe, Managing Director

Through: Adv. Sunita Deshmukh

Issued at: Pune

Dated: 12-Feb-2026

Registered post / e-mail: legal@greenfield.in